BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdla@gmail.com

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **UNITED PARCEL SERVICE, INC., and DOES 1 through 10, inclusive,** Defendants.	Case No. _____ **COMPLAINT FOR DAMAGES** (1) Violation of Cal. Penal Code § 290.46(j)(2)(E); (2) Failure to Hire in Violation of Public Policy; (3) Violation of ICRAA (Cal. Civ. Code § 1786 et seq.); (4) Invasion of Privacy (Cal. Const., Art. I, § 1); (5) Negligence Per Se; (6) Unlawful Business Practices (Bus. & Prof. Code § 17200 et seq.) *[UNLIMITED CIVIL]* *[JURY TRIAL DEMANDED]*

INTRODUCTION

1. This is a civil action for damages and other relief arising from Defendant United Parcel Service, Inc.'s ('UPS') violation of California Penal Code section 290.46(j)(2)(E), which categorically prohibits any person or entity from using information derived from California's Megan's Law public sex offender registry for purposes relating to employment.

2. In connection with Plaintiff BRENDAN NGEHSI NEWANFORBI's application for employment, UPS procured a background screening report through its third-party background

check vendor, First Advantage. On information and belief, that report disclosed Plaintiff's status as a registrant on California's sex offender registry. On information and belief, UPS accessed and used that registry information—in whole or in substantial part—as the basis for its decision to deny Plaintiff employment, in direct violation of Penal Code section 290.46(j)(2)(E).

3. The Legislature enacted section 290.46(j) to protect registered sex offenders from a specific category of harm: the use of Megan's Law registry data—which is made publicly available for a narrow protective purpose—to blackball them from employment. The civil remedy provision, section 290.46(j)(4)(A), authorizes a civil action for the greater of actual damages or $25,000, plus attorney fees. Plaintiff seeks those remedies, together with all other relief this Court deems just and proper.

PARTIES

4. Plaintiff BRENDAN NGEHSI NEWANFORBI ('Plaintiff') is a natural person who, at all times relevant to this action, resided in Stockton, California, County of San Joaquin, State of California.

5. Defendant UNITED PARCEL SERVICE, INC. ('UPS' or 'Defendant') is a Delaware corporation authorized to do business and doing business in the State of California, including in San Joaquin County. At all times relevant herein, UPS was an 'employer' within the meaning of California law and regularly conducted employment activities and background screening operations in California.

6. The true names and capacities of Defendants Does 1 through 10, inclusive, are unknown to Plaintiff, who therefore sues said Defendants by such fictitious names pursuant to Code of Civil Procedure section 474. On information and belief, each Doe Defendant is in some manner legally responsible for the damages and injuries alleged herein. Plaintiff will seek leave to

amend this complaint when the true names and capacities of Does 1 through 10 are ascertained.

JURISDICTION AND VENUE

7. This Court has unlimited civil jurisdiction over this action because the amount in controversy exceeds $35,000, exclusive of interest and costs.

8. Venue is proper in San Joaquin County pursuant to Code of Civil Procedure section 395(a) because Plaintiff resides in the City of Stockton, San Joaquin County, California, and the injuries giving rise to this action were suffered by Plaintiff in this County.

9. This Court has personal jurisdiction over UPS because UPS is authorized to transact, and does transact, business in the State of California, including in San Joaquin County, and has purposefully availed itself of the privilege of conducting activities in this State, thereby subjecting itself to the jurisdiction of California courts.

FACTUAL ALLEGATIONS

A. General Allegations Regarding California Penal Code Section 290.46(j)

10. California Penal Code section 290.46 requires certain sex offenders to register with law enforcement and authorizes the California Department of Justice to make certain registrant information available to the public through an online database commonly referred to as the 'Megan's Law website.'

11. Section 290.46(j)(1) provides that a person is authorized to use information disclosed pursuant to that section only to protect a person at risk. Section 290.46(j)(2) enumerates uses of such information that are prohibited. Subsection (j)(2)(E) specifically prohibits use of Megan's

Law registry information 'for purposes relating to . . . [e]mployment.'

12. The prohibition in section 290.46(j)(2)(E) is categorical and admits no exception for private employers, background check companies, or any private actor making employment decisions. The Legislature's determination was explicit: sex offender registry information accessible through the Megan's Law website may not be used in employment decisions.

13. California Penal Code section 290.46(j)(4)(A) provides a civil remedy for violations: 'Any use of information disclosed pursuant to this section for a purpose other than that provided by paragraph (1) or another provision of law is punishable as a misdemeanor, and subject to a civil action for actual damages or twenty-five thousand dollars ($25,000), whichever is greater, by any person whose information was used for the prohibited purpose. The person whose information was wrongfully used may also bring an action for attorney's fees.'

14. Background screening companies that compile investigative consumer reports for employment purposes routinely access and include sex offender registry information in their reports. On information and belief, these companies also routinely include statutory warnings apprising employers of the prohibitions in section 290.46(j)(2)(E). Despite such warnings, some employers nonetheless use the registry information in their employment decisions, in direct violation of the statute.

15. UPS is a large national employer that regularly orders background screening reports from third-party vendors—including First Advantage—in connection with employment applications. On information and belief, UPS's background screening policies and practices result in the regular access to, and use of, sex offender registry information in employment decisions, notwithstanding the prohibition in Penal Code section 290.46(j)(2)(E).

B. Plaintiff's Application for Employment with UPS

16. In or around mid-2024, Plaintiff submitted an application for employment with UPS for a position in UPS's delivery and logistics operations in California. Plaintiff was qualified for the position sought.

17. As part of its standard pre-employment screening process, UPS initiated a background check on Plaintiff through First Advantage (operating under the domain 'fadv.com'), a third-party investigative consumer reporting agency that provides background screening services to employers nationwide.

18. On or about July 22, 2024, Plaintiff received, at his email address, an electronic notification from First Advantage (sent from DoNotReply@fadv.com) bearing the subject line: 'Pre Adverse Action Notification regarding your application with UPS.' The notification advised Plaintiff to review the pre-adverse action notification for his background screening report for 'UNITED PARCEL SERVICE' via a link to First Advantage's portal.

19. The pre-adverse action notice sent to Plaintiff on July 22, 2024 constitutes the pre-adverse action notification required under the federal Fair Credit Reporting Act, 15 U.S.C. section 1681b(b)(3)(A), and the California Investigative Consumer Reporting Agencies Act, Civil Code section 1786.40, before an employer takes adverse action based in whole or in part on a background screening report.

C. Background Check Process and Contents of the Screening Report

20. On information and belief, First Advantage conducted a background screening report on Plaintiff and transmitted that report to UPS on or before July 22, 2024—the date of the pre-adverse action notice.

21. On information and belief, the background screening report prepared by First Advantage and provided to UPS contained information derived from California's Megan's Law sex offender registry maintained pursuant to Penal Code section 290.46, identifying Plaintiff as a registrant on that registry.

22. On information and belief, the First Advantage background screening report transmitted to UPS included a statutory notice or disclaimer informing UPS of the existence and requirements of California Penal Code section 290.46(j)(2)(E) and expressly warning UPS that the sex offender registry information contained in the report was prohibited from use in employment decisions. Background screening companies routinely include such statutory warnings in reports provided to California employers.

23. Despite any such warning, on information and belief, UPS reviewed, accessed, and considered the sex offender registry information contained in the First Advantage background screening report in making its employment decision regarding Plaintiff.

24. On or about July 22, 2024, Plaintiff received a link via First Advantage's portal through which Plaintiff could access the background screening report. That link has since expired, and Plaintiff no longer has access to the underlying report or its attachments. Plaintiff therefore pleads on information and belief as to the specific contents of the report insofar as those contents relate to sex offender registry information and the basis for UPS's adverse action.

D. The Adverse Employment Action

25. On or about July 31, 2024—nine (9) days after the pre-adverse action notice—Plaintiff received, at his email address, a second electronic notification from First Advantage (sent from DoNotReply@fadv.com) bearing the subject line: 'Final Adverse Action Notification regarding your application with UPS.' This notification confirmed that UPS had taken final adverse action

against Plaintiff, definitively denying him employment.

26. On information and belief, UPS's decision to take final adverse action against Plaintiff—denying him employment—was based, in whole or in substantial part, on Plaintiff's status as a registrant on California's sex offender registry as disclosed in the First Advantage background screening report.

27. UPS did not provide Plaintiff with any written communication identifying any basis for the adverse action other than the background screening report. No other disqualifying information known to Plaintiff existed in his application or background report that would provide an independent, lawful basis for denying him employment.

28. On information and belief, absent UPS's access to and use of Plaintiff's sex offender registry status, Plaintiff would have been offered and would have accepted the employment position with UPS.

E. Damages

29. As a direct and proximate result of UPS's unlawful conduct, as alleged herein, Plaintiff has suffered and continues to suffer substantial damages, including: (a) lost wages and employment benefits that Plaintiff would have earned but for UPS's unlawful failure to hire him; (b) lost career opportunity and professional advancement in the delivery and logistics industry; and (c) severe emotional distress, including anxiety, humiliation, shame, and mental anguish arising from being unlawfully denied employment because of his registry status.

30. Plaintiff has experienced significant financial hardship as a direct result of losing the UPS employment opportunity, which caused immediate and ongoing economic harm to Plaintiff and his household.

31. The acts and omissions of UPS described herein were undertaken willfully, with knowledge that Plaintiff's registry information was protected from employment use under California law, and in conscious disregard of Plaintiff's statutory and constitutional rights.

FIRST CAUSE OF ACTION

Violation of California Penal Code Section 290.46(j)(2)(E)

Unlawful Use of Sex Offender Registry Information in Employment Decisions

(Against All Defendants)

32. Plaintiff incorporates by reference paragraphs 1 through 31 as though fully set forth herein.

33. California Penal Code section 290.46(j)(1) authorizes persons to use information disclosed pursuant to that section only to protect a person at risk. Section 290.46(j)(2)(E) categorically prohibits any use of such information 'for purposes relating to . . . [e]mployment.' There is no exception for private employers making general hiring decisions.

34. Plaintiff is a registrant on California's sex offender registry within the meaning of Penal Code section 290.46. On information and belief, Plaintiff's registry status was disclosed in the background screening report compiled by First Advantage and provided to UPS in or about July 2024.

35. On information and belief, UPS accessed, reviewed, and used the sex offender registry information contained in Plaintiff's First Advantage background screening report for purposes relating to employment—specifically, in making the decision to deny Plaintiff employment on or about July 31, 2024.

36. UPS's use of Plaintiff's sex offender registry information for employment purposes was not authorized under Penal Code section 290.46(j)(1) or any other provision of law. The position at issue was in UPS's general delivery and logistics operations, and no facts suggest that any specifically identified vulnerable person at risk was exposed to any particular risk from

Plaintiff's employment. The narrow 'protect a person at risk' exception does not apply.

37. Pursuant to Penal Code section 290.46(j)(4)(A), Plaintiff is entitled to bring a civil action against UPS for actual damages or $25,000, whichever is greater, plus attorney fees and costs.

SECOND CAUSE OF ACTION

Failure to Hire in Violation of Public Policy

(Tameny Claim)

(Against All Defendants)

38. Plaintiff incorporates by reference paragraphs 1 through 31 as though fully set forth herein.

39. California recognizes a tort claim for wrongful failure to hire where an employer refuses to hire an applicant for reasons that violate a fundamental public policy of the State of California. (See Tameny v. Atlantic Richfield Co. (1980) 27 Cal.3d 167; City of Moorpark v. Superior Court (1998) 18 Cal.4th 1143.)

40. California Penal Code section 290.46(j)(2)(E) embodies a fundamental public policy of the State of California. The Legislature has expressly declared, in a statute codified in the Penal Code and backed by civil and criminal penalties, that employers must not use sex offender registry information in employment decisions. This prohibition reflects a legislative determination that the unrestricted use of Megan's Law data for employment gatekeeping is harmful to individual registrants and to the public interest in meaningful rehabilitation and reintegration.

41. On information and belief, UPS denied Plaintiff employment based, in whole or in substantial part, on Plaintiff's status as a registrant on California's sex offender registry, as disclosed in the First Advantage background screening report, in direct violation of the public policy embodied in Penal Code section 290.46(j)(2)(E).

42. By refusing to hire Plaintiff for a reason that violates the fundamental public policy of the State of California, UPS is liable to Plaintiff for all damages resulting from its unlawful failure to hire, including lost wages and benefits, emotional distress, and other damages according to proof at trial.

43. UPS's conduct was willful, malicious, and in conscious disregard of Plaintiff's rights and of the public policy of the State of California. Plaintiff is therefore entitled to an award of punitive damages pursuant to Civil Code section 3294.

THIRD CAUSE OF ACTION

Violation of the Investigative Consumer Reporting Agencies Act

(Cal. Civ. Code § 1786 et seq.)

(Against All Defendants)

44. Plaintiff incorporates by reference paragraphs 1 through 31 as though fully set forth herein.

45. California's Investigative Consumer Reporting Agencies Act, Civil Code section 1786 et seq. ('ICRAA'), regulates the procurement and use of investigative consumer reports, including background screening reports, for employment purposes in California. On information and belief, First Advantage is an 'investigative consumer reporting agency' within the meaning of Civil Code section 1786.2(d), and the background screening report prepared by First Advantage and provided

to UPS constitutes an 'investigative consumer report' within the meaning of Civil Code section 1786.2(c).

46. On information and belief, UPS's procurement and use of the First Advantage background screening report, which contained sex offender registry information prohibited from employment use under Penal Code section 290.46(j)(2)(E), constituted a violation of ICRAA and the public policies incorporated therein. The inclusion of legally prohibited information in an investigative consumer report prepared for employment purposes, and its use in employment decision-making, violates the spirit and purpose of ICRAA.

47. On information and belief, UPS failed to comply with one or more of the following requirements of the Investigative Consumer Reporting Agencies Act: (a) the requirement under Civil Code section 1786.16 to provide Plaintiff with a clear and conspicuous written disclosure that an investigative consumer report would be obtained, and to obtain Plaintiff's written consent; (b) the requirement to provide Plaintiff with a complete copy of all investigative consumer reports obtained, including any compliance materials, concurrent with or prior to the adverse action; and/or (c) other requirements of ICRAA governing the procurement and use of investigative consumer reports in employment decisions.

48. As a direct and proximate result of UPS's violations of ICRAA, Plaintiff suffered actual damages, including loss of the employment opportunity, lost wages, and emotional distress. Pursuant to Civil Code section 1786.50, Plaintiff is entitled to actual damages, and, for willful noncompliance, punitive damages not to exceed $5,000 per violation, plus attorney fees and costs.

FOURTH CAUSE OF ACTION

Invasion of Privacy

(Cal. Const., Art. I, § 1)

(Against All Defendants)

49. Plaintiff incorporates by reference paragraphs 1 through 31 as though fully set forth herein.

50. The California Constitution, Article I, Section 1, guarantees every person an inalienable right to privacy. The Legislature has recognized a legally protected privacy interest in sex offender registry information by strictly limiting its authorized use under Penal Code section 290.46(j) to the singular purpose of protecting persons at risk, and by prohibiting all other uses—including use in employment decisions.

51. On information and belief, UPS accessed, reviewed, and used information from California's sex offender registry pertaining to Plaintiff for the unauthorized and prohibited purpose of making an employment decision, in violation of Penal Code section 290.46(j)(2)(E). This unauthorized access and use constituted a serious invasion of Plaintiff's legally protected privacy interest.

52. UPS's invasion of Plaintiff's privacy was not justified by any legitimate, competing interest of sufficient weight to override the statutory and constitutional privacy protections. The position at issue—in general delivery and logistics operations—did not implicate any specific risk to any identified vulnerable person. The invasion was not authorized by law and could not be consented to by UPS's unilateral act.

53. As a direct and proximate result of UPS's invasion of Plaintiff's privacy, Plaintiff suffered humiliation, embarrassment, emotional distress, and other damages in an amount to be proven at trial.

FIFTH CAUSE OF ACTION

Negligence Per Se

(Against All Defendants)

54. Plaintiff incorporates by reference paragraphs 1 through 31 as though fully set forth herein.

55. California Penal Code section 290.46(j)(2)(E) is a statute enacted for the protection of a specific class of persons—registrants on the Megan's Law sex offender registry—against the specific harm of having their registry information used to deprive them of employment opportunities. Plaintiff is a member of the class of persons the statute was designed to protect, and the harm Plaintiff suffered—denial of employment, lost wages, and emotional distress—is precisely the type of harm the statute was enacted to prevent.

56. On information and belief, UPS violated Penal Code section 290.46(j)(2)(E) by accessing and using Plaintiff's sex offender registry information in making its decision to deny Plaintiff employment on or about July 31, 2024.

57. Pursuant to Evidence Code section 669, UPS's violation of Penal Code section 290.46(j)(2)(E) constitutes negligence per se. UPS's negligence was a proximate cause of Plaintiff's damages.

58. As a direct and proximate result of UPS's negligence per se, Plaintiff has suffered damages in an amount to be proven at trial, including lost wages, lost employment benefits, and emotional distress.

SIXTH CAUSE OF ACTION

Unlawful Business Practices

(Bus. & Prof. Code § 17200 et seq.)

(Against All Defendants)

59. Plaintiff incorporates by reference paragraphs 1 through 31 as though fully set forth herein.

60. California Business and Professions Code section 17200 prohibits 'any unlawful, unfair or fraudulent business act or practice.' Each prong is independently actionable.

61. UPS's conduct as alleged herein constitutes an 'unlawful' business practice because it violates California Penal Code section 290.46(j)(2)(E), a statute prohibiting the use of sex offender registry information in employment decisions. An employer's act that violates a statute is per se unlawful under Business and Professions Code section 17200.

62. UPS's conduct also constitutes an 'unfair' business practice because it harms employment applicants—including Plaintiff—and the public interest in the enforcement of legislative prohibitions, without any justification that outweighs those harms. The Legislature's policy judgment that registry information must not be used in employment decisions reflects a considered determination that such use causes harm disproportionate to any benefit.

63. As a direct and proximate result of UPS's unlawful and unfair business practices, Plaintiff has suffered loss of money and property, including lost wages and employment benefits, constituting injury in fact and loss of money or property causally connected to UPS's unlawful conduct, within the meaning of Business and Professions Code section 17204.

64. Plaintiff is entitled to restitution of lost wages and benefits, injunctive relief

prohibiting UPS from continuing to use sex offender registry information in employment decisions in California, and all other equitable relief authorized by Business and Professions Code section 17203, together with costs and attorney fees as authorized by applicable law.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff BRENDAN NGEHSI NEWANFORBI prays for judgment against Defendant UNITED PARCEL SERVICE, INC. and Does 1 through 10, inclusive, as follows:

1. For actual damages, including lost wages, lost employment benefits, and compensation for emotional distress, humiliation, and mental anguish, according to proof at trial;

2. For the civil penalty authorized by Penal Code section 290.46(j)(4)(A)—the greater of Plaintiff's actual damages or twenty-five thousand dollars ($25,000)—for each unlawful use of Plaintiff's sex offender registry information for employment purposes;

3. For attorney fees pursuant to Penal Code section 290.46(j)(4)(A);

4. For general and special damages on all causes of action, according to proof at trial;

5. For punitive damages pursuant to Civil Code section 3294 based on Defendant's willful, malicious, and oppressive conduct in conscious disregard of Plaintiff's rights;

6. For actual damages, punitive damages, and attorney fees pursuant to Civil Code section 1786.50 for violations of the Investigative Consumer Reporting Agencies Act;

7. For restitution and injunctive relief pursuant to Business and Professions Code section

17203, including an order enjoining Defendant from using sex offender registry information in employment decisions in California;

8. For costs of suit incurred herein; and

9. For such other and further relief as this Court deems just and proper.

DEMAND FOR JURY TRIAL

Plaintiff BRENDAN NGEHSI NEWANFORBI hereby demands a trial by jury on all causes of action and all issues triable by jury in the above-entitled action.

Dated: July 15, 2026

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BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

VERIFICATION

I, BRENDAN NGEHSI NEWANFORBI, declare:

I am the Plaintiff in the above-entitled action. I have read the foregoing Complaint for Damages and know its contents. The matters stated therein are true of my own personal knowledge, except as to those matters stated on information and belief, and as to those matters I believe them to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on July 15, 2026,

at Stockton, California.

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BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per